# APPLICATION UNDER THE RIGHT TO INFORMATION ACT, 2005

*Section 6(1) read with Section 6(3) | Ministry of Corporate Affairs | Fresh Application on New Evidence*

**Registrar of Companies, Ahmedabad | Shri Maintainance Contract Private Limited | CIN: U99999GJ1992PTC017724**

**NOTE ON THIS APPLICATION:** This is a FRESH RTI application separate from and in addition to the earlier RTI ROCAD/R/E/26/00013 (currently subject to Second Appeal before the Central Information Commission - CIC Diary No. 631681). The present application seeks different and additional information arising from new evidence discovered after the filing of ROCAD/R/E/26/00013 - specifically: (a) physical certified copies of Form 32 and Form 8 instruments now in the Applicant's possession; (b) the CHG-4 satisfaction of charge document; (c) the capital discrepancy between MCA portal and physical records; and (d) the Section 250 Companies Act vesting question. This application does not duplicate any items pending before the CIC.

## TO - CENTRAL PUBLIC INFORMATION OFFICER

The Central Public Information Officer (CPIO)
Office of the Registrar of Companies, Ahmedabad
ROC Bhavan, Opp. Rupal Park Society,
Behind Ankur Bus Stop, Naranpura,
Ahmedabad - 380 013, Gujarat.

*COPY TO: The First Appellate Authority, Office of the Registrar of Companies, Ahmedabad, at the same address.*

## PART I - PARTICULARS OF THE APPLICANT

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|---|---|
| **Full Name** | Neeraj Singh Mohnia |
| **Capacity** | Indian Citizen \| Sole Proprietor, Adarsh Impex Enterprise (now defunct) \| Decree Holder - Summary Suit No. 1351/2017, City Civil Court Mumbai \| Intervener - OA No. 122/2022, DRT-II Mumbai (IA No. 884/2026) |
| **Address for Service** | A-503, Marathon Eminence, Dadasaheb Gaikwad Marg, Mulund West, Mumbai - 400 080 |
| **Mobile** | +91-9323722122 |
| **Email** | adarshimpexent@gmail.com |
| **BPL Status** | No |
| **RTI Fee** | Rs. 10/- enclosed - Indian Postal Order / Online Payment |
| **Mode of Receipt** | By Post AND by Email to above address \| Certified copies by Speed Post |

## ELIGIBILITY AND LOCUS STANDI

The Applicant is a citizen of India entitled under Section 3 of the Right to Information Act, 2005 to seek information from any public authority. Section 6(2) of the Act unconditionally provides that an applicant shall not be required to give any reason for requesting information. The CPIO is respectfully reminded of this mandatory provision — any attempt to require reasons is contrary to law and grounds for penalty under Section 20.

The Applicant has a direct, legitimate, and justiciable interest in the complete statutory records of Shri Maintainance Contract Private Limited (CIN: U99999GJ1992PTC017724). The land at R.S. No. 124, Block 152, Village Kural, Padra Taluka, Vadodara - titled in this company's name per four Government of Gujarat revenue records bearing official digital signatures - is the primary

security for a Rs. 29.5 crore Bank of India mortgage that is the subject of active proceedings before DRT-II Mumbai (OA No. 122/2022) in which the Applicant is an Intervener. The information sought is essential for those proceedings.

The Registrar of Companies, Ahmedabad, is a public authority within the meaning of Section 2(h) of the RTI Act, being an office of the Ministry of Corporate Affairs established under the Companies Act. Under Section 399 of the Companies Act 2013, documents filed with the RoC are available for public inspection. The CPIO is obligated to provide information in accordance with the RTI Act.

## PART II - SUBJECT OF THIS APPLICATION

**SUBJECT: Complete statutory records - including new and additional information not sought in prior RTI ROCAD/R/E/26/00013 - of SHRI MAINTAINANCE CONTRACT PRIVATE LIMITED, CIN: U99999GJ1992PTC017724, Registration No. 017724, incorporated 27/05/1992, Status: STRIKE OFF, RoC Ahmedabad.**

## PART III - BACKGROUND AND NEW EVIDENCE REQUIRING FRESH APPLICATION

The following new evidence has been discovered since the filing of RTI ROCAD/R/E/26/00013 on 20-03-2026 - each item giving rise to fresh and specific questions that were not and could not have been raised in the earlier RTI:

### NEW EVIDENCE 1 - Physical Certified Copies from RoC now in possession

Physical certified copies of the following documents of Shri Maintainance Contract Private Limited have since been obtained from the RoC office and are now in the Applicant's possession: (a) Form 32 - Particulars of Directors - identifying four directors from the Shukla family of Old Padra Road, Baroda: Shri Harshad Maganlal Shukla, Smt. Swati Harshad Shukla, Shri Maganlal Karunashankar Shukla, and Shri Vasanlal Shukla; (b) Form 8 - three charge instruments in favour of Bank of Baroda totalling Rs. 38,00,000 (1993, 1996, 2001).

These certified copies raise new questions: (i) None of these directors appear on the MCA portal - suggesting none ever obtained a DIN. (ii) The three Form 8 charge instruments do not appear in the MCA portal's Index of Charges (which shows No Records Found). (iii) No Form 17 satisfaction of any charge appears to have been filed. The CPIO must address these specific new questions.

### NEW EVIDENCE 2 - Capital Discrepancy Between Portal and Physical Records

The MCA portal shows Authorised Capital as Rs. 5,00,000. However, the physical Form 8 (charge instrument dated 19-07-2001) records Nominal Capital as Rs. 20,00,000 - indicating the authorised capital was apparently increased by 2001, but this increase is not reflected on the MCA portal. This raises a specific question about whether Form SH-7 / Form 5 (capital alteration) was ever filed with this office.

### NEW EVIDENCE 3 - Form CHG-4 Satisfaction of Charge

A certified copy of Form CHG-4 (Satisfaction of Charge) has been obtained showing that a charge (Charge Creation ID 10350710, Amount Rs. 7,03,04,000) in favour of Indian Overseas Bank was satisfied on 19-10-2015. This document was signed by a director bearing DIN 02080079 on behalf of the borrower entity (Light and Glaze Profile Pvt. Ltd. - a connected company). This raises specific questions about the relationship between the two companies and about charges on the Kural Village land.

### NEW EVIDENCE 4 - Section 250 Companies Act 2013 - Assets Vested in Government

The MCA portal confirms Status: STRIKE OFF for CIN U99999GJ1992PTC017724. Under Section 250 of the Companies Act 2013, upon a company being struck off, all its assets vest in

the Government of India. The exact date of strike-off is therefore critical - it determines when the assets vested. This specific question was not raised with the precision required in the earlier RTI.

## PART IV - SPECIFIC INFORMATION SOUGHT

### A. DIRECTORS - COMPLETE HISTORY AND DIN STATUS

**A1. Certified copies of ALL Form 32 filings (Particulars of Directors under Section 303(2) of the Companies Act, 1956) ever made in respect of CIN U99999GJ1992PTC017724 - recording every appointment, resignation, retirement, and change in directorship from 1992 to date.**

**A2. Confirmation whether any of the following directors - identified from physical certified copies of Form 32 already in the Applicant's possession - ever obtained a Director Identification Number (DIN) as required under Section 153 of the Companies Act, 2013: (a) Shri Harshad Maganlal Shukla - Manglam Complex, 40 Punitnagar, Old Padra Road, Baroda; (b) Smt. Swati Harshad Shukla - Nr. Vidhut Nagar, Old Padra Road, Baroda; (c) Shri Maganlal Karunashankar Shukla - 87/Durganagar, Old Padra Road, Baroda; (d) Shri Vasanlal Shukla - Old Padra Road, Baroda. If no DIN was obtained by any director - explicit written confirmation to that effect.**

**A3. Whether any director of this company - past or present - is also a director, shareholder, guarantor, proprietor, or authorised signatory of any of the following entities: (a) M/s Rashmi Steels, Mumbai; (b) Rashmi Metasteel Private Limited (CIN: U27310MH2011PTC213595); (c) Light and Glaze Profile Private Limited (CIN: U27203GJ2011PTC065583); (d) M/s Rashmi International, Mumbai; (e) any entity associated with Shri Babulal Ganeshmal Bohra, Shri Ravi Babulal Bohra, or Smt. Sangeeta Babulal Bohra.**

**A4. Complete list of all persons who have at any time been shareholders of this company - with names, addresses, and number of shares held - as reflected in the share register or any annual return ever filed.**

### B. CHARGES - ALL FORM 8 AND FORM 17 INSTRUMENTS

**B1. Certified copies of ALL Form 8 (Particulars of Charge Creation/Modification) and Form 17 (Particulars of Satisfaction of Charge) ever filed in respect of CIN U99999GJ1992PTC017724 - specifically including:**

- **(a)** Charge Reg. No. 04-01775 dated 21/10/2004 - Hypothecation of goods and book debts in favour of Bank of Baroda - Rs. 18,00,000.
- **(b)** Charge modification receipt dated 18-06-1996 (Reg. No. 1772).
- **(c)** Equitable Mortgage in favour of Bank of Baroda, Raopura Branch, Baroda - Reg. No. 04-017774 dated 19-07-2001 - Rs. 38,00,000 - over Mangalam Commercial Complex, Mouje Akota, Survey No. 254, Sub Plot 40, Punitnagar Society, Padra Road, Baroda.
- **(d)** Any other charge instrument not listed above

**B2. Confirmation whether any Form 17 (satisfaction of charge) has ever been filed in respect of ANY charge on the records of this company. If no Form 17 has ever been filed - explicit written confirmation to that effect.**

**B3. The current status of all charges - whether satisfied or open - as per official RoC records (not the MCA portal, which shows No Records Found for charges despite the physical certified copies showing three charge instruments).**

**B4. Why the three charge instruments visible in the physical certified copies do not appear in the MCA portal's Index of Charges - and whether this is a data migration issue or indicates the charges were satisfied without formal Form 17 filings.**

## C. AUTHORISED CAPITAL - DISCREPANCY BETWEEN PORTAL AND PHYSICAL RECORDS

**C1. Certified copies of ALL Form 5 / SH-7 (Notice of Alteration of Share Capital) ever filed by this company - specifically any filing recording an increase in authorised capital from Rs. 5,00,000 to Rs. 20,00,000. The physical Form 8 (charge instrument dated 19-07-2001, Reg. No. 04-017774) in the Applicant's possession records Nominal Capital as Rs. 20,00,000 - but the MCA portal shows Rs. 5,00,000. This discrepancy requires resolution.**

**C2. Confirmation of the total paid-up capital as per RoC records - specifically whether the Rs. 40 shown on the MCA portal is the correct and complete paid-up capital, and the names of allottees of shares.**

## D. STRIKE-OFF - COMPLETE RECORD INCLUDING EXACT DATE AND SECTION 250 VESTING MOST CRITICAL ITEMS IN THIS APPLICATION: Items D-1 through D-4 below.

The exact date of strike-off determines when the company's assets vested in the Government of India under Section 250 of the Companies Act 2013. Both the 2012 IOB mortgage and the 2017 Bank of India mortgage over the Kural Village land depend on this date for their legal validity.

**D1. The EXACT DATE on which Shri Maintainance Contract Private Limited (CIN: U99999GJ1992PTC017724) was struck off the register of companies - not just the fact of strike-off but the specific calendar date on which the strike-off took effect.**

**D2. The specific statutory provision under which strike-off was effected - whether Section 248(1) (RoC-initiated for non-filing) or Section 248(5) (voluntary application) of the Companies Act 2013, or the corresponding provision of the Companies Act 1956 if struck off before 2013.**

**D3. Certified copy of: (a) the strike-off order or Registrar's notice initiating strike-off proceedings; (b) the Gazette notification of strike-off if any; (c) the STK-5 notice (if applicable) - the Applicant has noted STK-5 Serial No. 3046 in the RoC records for this company.**

**D4. Whether, upon strike-off, any assets of this company were identified as vesting in the Government of India under Section 250 of the Companies Act 2013 - specifically whether the immovable property at R.S. No. 124, Block 152, Village Kural, Padra Taluka, Vadodara, Gujarat (approximately 6,303 to 12,367 sq.m.) was identified as an asset of this company at the time of or after strike-off, and what action (if any) this office took regarding such vesting.**

**D5. Whether any application for restoration of this company to the register under Section 252 of the Companies Act 2013 has ever been filed - and if so, the current status of that application.**

## E. ANNUAL RETURNS AND FINANCIAL STATEMENTS

**E1. Complete list of ALL annual returns (Form 20B / MGT-7) and financial statements (Form 23AC/23ACA / AOC-4) filed by this company from 1992 to date - with filing dates and financial years covered. If NO financial statements have ever been filed - a certificate to that effect confirming this company has never filed a balance sheet with this office in 34 years of existence.**

**E2. Whether prosecution under Section 137 of the Companies Act 2013 (failure to file financial statements) or Section 92 (failure to file annual returns) has been or is being initiated against any director of this company - and the status of any such proceedings.**

## F. THIRD-PARTY CORRESPONDENCE, BANK COMMUNICATIONS, AND SHARE TRANSFERS

**F1. Whether any of the following banks or institutions has at any time communicated with this office regarding Shri Maintainance Contract Private Limited or its assets - and if so, certified copies of all such correspondence:**

**(a)** Indian Overseas Bank (any branch, particularly Dandia Bazaar Branch, Vadodara).

**(b)** Bank of India (any branch, particularly Nagpada Branch, Mumbai).

**(c)** Bank of Baroda (any branch, particularly Raopura Branch, Baroda).

**(d)** Any Asset Reconstruction Company or SARFAESI-related authority.

**F2. Whether any share transfer has been registered in this company's records after the date of its last AGM (30/09/2014) - and if so, certified copies of all such transfer instruments and the updated shareholding pattern.**

**F3. Whether any person or entity has applied for or obtained certified copies of any documents of this company from this office after 01-01-2020 - and if so, the identity of the applicant and the documents sought. (This question is asked to determine whether any third party has been accessing this company's records.)**

## G. INCORPORATION JURISDICTION - DADRA AND NAGAR HAVELI RECORDS

**G1. Confirmation of the name of the original Registrar of Companies under whose jurisdiction this company was incorporated - specifically whether it was the Registrar of Companies, Dadra and Nagar Haveli, or another jurisdiction - and the date and basis of transfer of records to the RoC Ahmedabad office.**

**G2. Whether the complete physical file of this company - including all pre-2006 documents filed before the MCA21 digitisation - was received by this office from the original RoC jurisdiction, and whether the file is complete and available for inspection.**

**G3. The reason why the NIC Industry Code shown against CIN U99999GJ1992PTC017724 on the MCA portal is 99999 - a code that does not correspond to any classified industry under any version of the National Industrial Classification - and what business activity was actually declared at incorporation.**

# PART V - LEGAL BASIS AND BINDING SUPREME COURT AUTHORITY

## STATUTORY BASIS

This application is filed under Section 6(1) of the Right to Information Act, 2005. The Registrar of Companies, Ahmedabad, is a public authority within the meaning of Section 2(h) of the RTI Act. Under Section 399 of the Companies Act 2013, documents filed with the Registrar are open to public inspection. The information sought is statutory public information - company filings are held by the RoC as a statutory repository for public inspection, not in any confidential capacity.

Section 6(2) of the RTI Act unconditionally bars the CPIO from requiring reasons or justification. The Applicant is not required to disclose the purpose of this request.

## BINDING SUPREME COURT AUTHORITY

**1. Central Board of Secondary Education and Anr. v. Aditya Bandopadhyay and Ors. (2011) 8 SCC 497:**

> *The right to information is a fundamental right of citizens. The burden is on the public authority to establish that a specific exemption under Section 8 applies. The CPIO cannot issue blanket or omnibus denials - each item of information must be addressed separately with specific reasons.*

Application to this RTI: Every item in Part IV must be addressed individually. A global denial is impermissible.

**2. Reserve Bank of India v. Jayantilal N. Mistry (2016) 3 SCC 525:**

> *Public authorities cannot claim fiduciary exemption under Section 8(1)(e) in respect of information they hold as a statutory repository. The RTI Act must be given a purposive and liberal interpretation to advance the constitutional values of transparency and accountability.*

Application to this RTI: The RoC holds company documents as a statutory repository for public inspection under Section 399 Companies Act. No fiduciary or commercial confidentiality claim is available.

**3. Namit Sharma v. Union of India (2013) 1 SCC 745:**

> *Section 6(2) of the RTI Act provides an absolute bar on the CPIO requiring reasons from the applicant. Any attempt to require justification for a request is contrary to law. RTI Act procedural safeguards are mandatory and cannot be dispensed with by any public authority.*

Application to this RTI: The CPIO may not ask why this information is sought. Section 7(8) requires a reasoned order if any item is withheld - stating the specific exemption and the FAA particulars.

**4. Girish Ramchandra Deshpande v. Central Information Commissioner (2013) 1 SCC 212:**

> *Information relating to the public functions of a public authority is not exempt under the RTI Act. The functioning of the Registrar of Companies - a statutory body charged with maintaining public company records - is entirely public in nature.*

Application to this RTI: Company filings maintained by RoC are public records by statutory mandate. No exemption under Section 8 is available.

**5. Manohar Lal Sharma v. Principal Secretary and Ors. (2014) 2 SCC 532:**

> *In cases involving public money and potential non-compliance with statutory obligations, the right to information must be given maximum effect and any exemptions must be construed narrowly. Public interest in disclosure overrides any theoretical claim of harm from disclosure.*

Application to this RTI: The records of a struck-off company whose land was used as security for Rs. 35+ crore in bank loans involve substantial public money - the public interest in disclosure is absolute.

**6. S.P. Gupta v. Union of India AIR 1982 SC 149:**

*In a participatory democracy, citizens have a right to know about the functioning of public authorities and institutions. Information cannot be withheld from citizens without compelling reason grounded in specific statutory exemption.*

Application to this RTI: The statutory records of companies incorporated under the Companies Act are precisely the category of information that citizens have a constitutional right to access.

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## PART VI - PRE-EMPTIVE RESPONSES TO ANTICIPATED OBJECTIONS

1. **OBJECTION ANTICIPATED: Records are old / not digitised / not available. RESPONSE: The Applicant is already in possession of physical certified copies of Form 32 and three Form 8 instruments obtained from this very office. These certified copies bear the official stamp of the RoC Ahmedabad office. The physical file therefore exists. The RTI Act does not exempt information merely because it is not digitised - Section 7(9) requires the CPIO to provide information in the form in which it is sought. If records exist in physical form they must be provided in physical certified copy form.**

2. **OBJECTION ANTICIPATED: Company is struck off - records may not be maintained. RESPONSE: Strike-off does not destroy RoC records. Under Rule 27 of the Companies (Registration Offices and Fees) Rules 2014, the Registrar is required to maintain records permanently. A struck-off company's file remains on record indefinitely. The earlier certified copies obtained from this office prove the file is maintained and accessible.**

3. **OBJECTION ANTICIPATED: This information is exempt under Section 8(1)(e) - fiduciary relationship. RESPONSE: The Supreme Court in Reserve Bank of India v. Jayantilal N. Mistry (2016) 3 SCC 525 expressly rejected the blanket fiduciary exemption. The RoC does not hold company records in a fiduciary capacity - it holds them as a statutory repository for public inspection under Section 399 of the Companies Act 2013. This position is settled law.**

4. **OBJECTION ANTICIPATED: Third party notice required under Section 11. RESPONSE: A struck-off company has no legal existence and cannot be a third party for Section 11 purposes. There are no directors on the MCA portal who can be identified and served. In any event, company filings are publicly inspectable by statute - there is no third-party confidentiality claim possible over documents that Parliament has mandated be placed on a public register.**

5. **OBJECTION ANTICIPATED: Transfer to another CPIO. RESPONSE: This application is addressed to the RoC Ahmedabad which holds the complete file of CIN U99999GJ1992PTC017724. If any portion is held by another office, transfer under Section 6(3) is permissible but must be done within 5 days with written intimation. Any delay caused by transfer counts against this office for the 30-day statutory period.**

6. **OBJECTION ANTICIPATED: Request is too broad - cannot provide all documents. RESPONSE: Each item is specifically identified by form number, date, registration number, or charge reference where available. Items not so identified are narrow questions requiring yes/no confirmation or short descriptive answers. The Supreme Court in CBSE v. Aditya Bandopadhyay held that CPIOs cannot reject requests as too broad without identifying which specific items are problematic.**

7. **OBJECTION ANTICIPATED: Duplicate of pending Second Appeal before CIC (Diary No. 631681). RESPONSE: This application specifically does NOT duplicate items pending before the CIC. The items in Part IV Sections A through G seek information arising from NEW evidence (Form 32, Form 8, CHG-4, capital discrepancy, STK-5) discovered after the earlier RTI was filed. The CIC proceedings relate to the original RTI ROCAD/R/E/26/00013. This is an independent fresh application on different information items.**

## PART VII - PUBLIC INTEREST OVERRIDE - SECTION 8(2)

The Applicant expressly invokes Section 8(2) of the RTI Act. Even if any exemption under Section 8(1) were arguable - which is denied - Section 8(2) provides that a public authority shall allow access to information if the public interest in disclosure outweighs the harm to protected interests.

The public interest in disclosure is overwhelming: **(a)** Two public sector banks - Indian Overseas Bank and Bank of India - disbursed a combined Rs. 35+ crore of public money as mortgage loans secured against land registered in this struck-off company's name; **(b)** The primary security for a Rs. 29.5 crore Bank of India loan is confirmed void on three independent grounds - non-ownership, Government revenue land, and Section 250 vesting; **(c)** Active DRT-II proceedings are pending (OA No. 122/2022); **(d)** The matter has been referred to CBI, EOW, RBI, and other regulatory authorities. In these circumstances the public interest in full disclosure is absolute and no private interest can outweigh it.

## PART VIII - RELIEF SOUGHT

The Applicant **respectfully prays** that the CPIO be pleased to:

1. **Provide certified copies of all documents specified in Part IV above within the statutory period of 30 days from receipt of this application under Section 7(1) of the RTI Act.**
2. **If additional fees are payable - an itemised fee notice under Section 7(3) of the RTI Act specifying the number of pages and fee per page.**
3. **If any item of information cannot be provided - a written order under Section 7(8) of the RTI Act stating: (a) the specific provision of Section 8 or Section 9 under which it is withheld; (b) the reasons for that decision; and (c) the particulars of the First Appellate Authority including name, designation, and address.**
1. **If records are held partly by this office and partly by another public authority - transfer of the relevant portion under Section 6(3) of the RTI Act with written intimation to the Applicant within 5 days.**

## DECLARATION

I, Neeraj Singh Mohnia, declare that I am a citizen of India. The information is sought for lawful purposes in connection with active judicial proceedings. I am not seeking information prohibited under the RTI Act. I undertake to pay additional fees as lawfully determined by the CPIO. The contents of this application are true to the best of my knowledge, information, and belief.

Date: 3rd June 2026

Place: Mumbai



**Neeraj Singh Mohnia**

A-503, Marathon Eminence, Dadasaheb Gaikwad Marg, Mulund West, Mumbai - 400 080 | +91-9323722122 | adarshimpexent@gmail.com

**NOTE ON FURTHER REMEDIES:** If this application is not responded to within 30 days, or if the response is unsatisfactory, the Applicant will file a First Appeal under Section 19(1) of the RTI Act, followed by a Second Appeal to the Central Information Commission under Section 19(3). The Applicant may also seek imposition of penalty under Section 20 of the RTI Act. The CPIO is respectfully reminded that physical certified copies of Form 32 and Form 8 instruments of this company have already been obtained from this office by the Applicant - proving these records exist and are maintained here - and any denial of their existence will be immediately challenged before the CIC with those certified copies as evidence.